

## Vijay Yadav v. State of U.P. — recovery citation relegated to para 6.8 objection

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · Writ-C No. 22001 of 2022 · Writ-C No. 22001 of 2022 · **Writ disposed; petitioner relegated to para 6.8 objection with stay of coercive recovery.**

### HEADNOTE

A writ seeking quashing of a distribution corporation demand notice dated 31 August 2021 and recovery citation dated 5 April 2022 for Rs. 53,121 was disposed of without examining merits. On the corporation's statement, the petitioner was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, with a stay of coercive action for eight weeks or until disposal of the objection, whichever is earlier.

### FACTUAL SUMMARY

Vijay Yadav approached the Allahabad High Court seeking certiorari to quash a notice dated 31 August 2021 and a recovery citation dated 5 April 2022 issued by the power distribution corporation for Rs. 53,121, together with a mandamus restraining coercive recovery. Counsel for the corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

#### HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the assessing officer (respondent no. 5) within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action on the impugned demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

### PRINCIPLE TAGS

**pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** The Court directed the assessing officer to decide a Para 6.8 objection after hearing, and stayed coercive recovery for eight weeks or until that disposal, whichever is earlier. ¶ 4-5

**para-6.8-objection-alternate-remedy** The writ against the demand notice and recovery citation was closed by relegating the petitioner to a Para 6.8 objection, without any merits determination. ¶ 4

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — LEGALITY OF THE NOTICE DATED 31.8.2021, THE RECOVERY CITATION DATED 5.4.2022, AND THE DEMAND OF RS. 53,121

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4